

Amendment No. 1 to SB0541

Gardenhire
Signature of Sponsor

AMEND Senate Bill No. 541*

House Bill No. 906

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 32-2-104(a), is amended by deleting the first sentence.

SECTION 2. Tennessee Code Annotated, Section 32-2-104, is amended by adding the following as new subsections (a)–(d) and redesignating the current subsections (a) and (b) as new subsections (e) and (f):

(a) As used in this chapter:

(1) "Nuncupative will" means a will that is verbally given by the testator and meets the requirements of § 32-1-106; and

(2) "Written will other than a holographic will" means a will reduced to writing in other than the testator's own handwriting or a testamentary document that is typewritten by the testator or someone other than the testator. The document must be signed by the testator, and the testator's signature must be attested by two (2) witnesses in accordance with § 32-1-104.

(b) The following is required to admit a nuncupative will of a decedent to probate in common form:

(1) A sworn petition containing the information required by § 30-1-117;

(2) Production of the nuncupative will reduced to writing as required by § 32-1-106; and

(3) Affidavits of the two (2) witnesses to the declaration of the nuncupative will attesting that the terms of the nuncupative will were accurately reduced to writing by one (1) of the witnesses as required by § 32-1-106.

(c) The following is required to admit a written will other than a holograph will to probate in common form:

(1) A sworn petition containing the information required by § 30-1-117;

(2) Production of the document or documents purporting to be the testator's testamentary document; and

(3) Either:

(A) The in-person testimony of two (2) persons who saw the testator sign the testamentary document or documents; or

(B) Sworn affidavits of the two (2) witnesses attesting to the testator's signature, to the facts of the signing of the document, and that the testator was eighteen (18) years of age or older and of sound mind and disposing memory at the time the document was signed.

(d) The following is required to probate a nuncupative will or written will other than a holographic will in solemn form, which may be the initial presentation of the document for admission to probate or may follow a common form admission to probate:

(1) A sworn petition containing the information required by § 30-1-117;

(2) Notice issued by the clerk of the probate court to all heirs at law and beneficiaries under any prior written will of the testator of the date that must be no less than forty (40) calendar days from the date the sworn petition for probate in solemn form is filed and time of the hearing before the appropriate court;

(3) Production of the document purporting to be the testator's testamentary document; and

(4) The in-person testimony of each attesting witness, notary, or other person present when the testator signed the alleged testamentary document to

the extent that such persons are available, locatable, and within the jurisdiction of the court.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.